

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 757

BY HEALTH AND WELFARE COMMITTEE

AN ACT

RELATING TO MEDICAL NEGLECT; AMENDING SECTION 16-1602, IDAHO CODE, TO REVISE A DEFINITION, TO DEFINE A TERM, AND TO MAKE TECHNICAL CORRECTIONS; AMENDING SECTION 39-5302, IDAHO CODE, TO DEFINE A TERM; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 16-1602, Idaho Code, be, and the same is hereby amended to read as follows:

16-1602. DEFINITIONS. For purposes of this chapter:

(1) "Abused" means any case in which a child has been the victim of:

(a) Conduct or omission resulting in skin bruising, bleeding, malnutrition, burns, fracture of any bone, head injury, soft tissue swelling, failure to thrive or death, and such condition or death is not justifiably explained, or where the history given concerning such condition or death is at variance with the degree or type of such condition or death, or the circumstances indicate that such condition or death may not be the product of an accidental occurrence; or

(b) Sexual conduct, including rape, molestation, incest, commercial sexual activity, obscene or pornographic photographing, filming or depiction for commercial purposes, human trafficking as defined in chapter 86, title 18, Idaho Code, or other similar forms of sexual exploitation harming or threatening the child's health or welfare or mental injury to the child.

(2) "Abandoned" means the failure of the parent to maintain a normal parental relationship with his child including, but not limited to, reasonable support or regular personal contact. Failure to maintain this relationship without just cause for a period of one (1) year shall constitute prima facie evidence of abandonment.

(3) "Adaptive equipment" means any piece of equipment or any item that is used to increase, maintain or improve the parenting capabilities of a parent with a disability.

(4) "Adjudicatory hearing" means a hearing to determine:

(a) Whether the child comes under the jurisdiction of the court pursuant to the provisions of this chapter;

(b) Whether continuation of the child in the home would be contrary to the child's welfare and whether the best interest of the child requires protective supervision or vesting legal custody of the child in an authorized agency.

(5) "Age of developmentally appropriate" means:

(a) Activities that are generally accepted as suitable for children of the same chronological age or level of maturity or that are determined to be developmentally appropriate for a child, based on the development

1 of cognitive, emotional, physical and behavioral capacities that are
2 typical for an age or age group; and

3 (b) In the case of a specific child, activities or items that are suit-
4 able for the child based on the developmental stages attained by the
5 child with respect to the cognitive, emotional, physical and behavioral
6 capacities of the child.

7 (6) "Aggravated circumstances" includes, but is not limited to:

8 (a) Circumstances in which the parent has engaged in any of the follow-
9 ing:

10 (i) Abandonment, chronic abuse or chronic neglect of the child.
11 Chronic neglect or chronic abuse of a child shall consist of abuse
12 or neglect that is so extreme or repetitious as to indicate that
13 return of the child to the home would result in unacceptable risk
14 to the health and welfare of the child.

15 (ii) Sexual abuse against a child of the parent. Sexual abuse, for
16 the purposes of this section, includes any conduct described in
17 section 18-1506, 18-1506A, 18-1507, 18-1508, 18-1508A, 18-6101,
18 or 18-6604, or chapter 86, title 18, Idaho Code.

19 (iii) Torture of a child. Any conduct listed in section
20 18-8303(1), Idaho Code; battery or an injury to a child that re-
21 sults in serious or great bodily injury to a child; voluntary
22 manslaughter of a child, or aiding or abetting such voluntary
23 manslaughter, soliciting such voluntary manslaughter or attempt-
24 ing or conspiring to commit such voluntary manslaughter;

25 (b) The parent has committed murder, aided or abetted a murder, so-
26 licited a murder or attempted or conspired to commit murder; or

27 (c) The parental rights of the parent to another child have been termi-
28 nated involuntarily.

29 (7) "Authorized agency" means the department, a local agency, a person,
30 an organization, corporation, benevolent society or association licensed
31 or approved by the department or the court to receive children for control,
32 care, maintenance or placement.

33 (8) "Caregiver" means a foster parent with whom a child in foster care
34 has been placed or a designated official for a child care institution in
35 which a child in foster care has been placed.

36 (9) "Case plan hearing" means a hearing to approve, modify or reject the
37 case plan as provided in section 16-1621, Idaho Code.

38 (10) "Child" means an individual who is under the age of eighteen (18)
39 years.

40 (11) "Child advocacy center" or "CAC" means an organization that ad-
41 heres to national best practice standards established by the national
42 membership and accrediting body for children's advocacy centers and that
43 promotes a comprehensive and coordinated multidisciplinary team response to
44 allegations of child abuse by maintaining a child-friendly facility at which
45 appropriate services are provided. These services may include forensic in-
46 terviews, forensic medical examinations, mental health services and other
47 related victim services.

48 (12) "Circumstances of the child" includes, but is not limited to, the
49 joint legal custody or joint physical custody of the child.

50 (13) "Commit" means to transfer legal and physical custody.

1 (14) "Concurrent planning" means a planning model that prepares for and
2 implements different outcomes at the same time.

3 (15) "Court" means district court or magistrate division thereof or, if
4 the context requires, a magistrate or judge thereof.

5 (16) "Custodian" means a person, other than a parent or legal guardian,
6 to whom legal or joint legal custody of the child has been given by court or-
7 der.

8 (17) "Department" means the department of health and welfare and its au-
9 thorized representatives.

10 (18) "Disability" means, with respect to an individual, any mental or
11 physical impairment that substantially limits one (1) or more major life
12 activities of the individual including, but not limited to, self-care, man-
13 ual tasks, walking, seeing, hearing, speaking, learning or working, or a
14 record of such an impairment, or being regarded as having such an impairment.
15 Disability shall not include transvestism, transsexualism, pedophilia,
16 exhibitionism, voyeurism, other sexual behavior disorders, or substance use
17 disorders, compulsive gambling, kleptomania or pyromania. Sexual prefer-
18 ence or orientation is not considered an impairment or disability. Whether
19 an impairment substantially limits a major life activity shall be determined
20 without consideration of the effect of corrective or mitigating measures
21 used to reduce the effects of the impairment.

22 (19) "Family or household member" shall have the same meaning as in sec-
23 tion 39-6303(6), Idaho Code.

24 (20) "Foster care" means twenty-four (24) hour substitute parental care
25 for children placed away from their parents or guardians by persons who may
26 or may not be related to the children and for whom the state agency has place-
27 ment and care responsibility.

28 (21) "Foster parent" means a person or persons licensed to provide fos-
29 ter care.

30 (22) "Grant administrator" means the supreme court or any organization
31 or agency as may be designated by the supreme court in accordance with such
32 procedures as may be adopted by the supreme court. The grant administrator
33 shall administer funds from the guardian ad litem account in accordance with
34 the provisions of this chapter.

35 (23) "Guardian ad litem" means a person appointed by the court pursuant
36 to a guardian ad litem volunteer program to act as special advocate for a
37 child under this chapter.

38 (24) "Guardian ad litem coordinator" means a person or entity receiving
39 moneys from the grant administrator for the purpose of carrying out any of
40 the duties set forth in section 16-1632, Idaho Code.

41 (25) "Guardian ad litem program" means the program to recruit, train and
42 coordinate volunteer persons to serve as guardians ad litem for abused, ne-
43 glected or abandoned children.

44 (26) "Homeless," as used in this chapter, shall mean that the child is
45 without adequate shelter or other living facilities, and the lack of such
46 shelter or other living facilities poses a threat to the health, safety or
47 well-being of the child.

48 (27) "Idaho network of children's advocacy centers" means an organiza-
49 tion that provides education and technical assistance to child advocacy cen-

ters and to interagency multidisciplinary teams developed pursuant to section 16-1617, Idaho Code.

(28) "Law enforcement agency" means a city police department, the prosecuting attorney of any county, state law enforcement officers, or the office of a sheriff of any county.

(29) "Legal custody" means a relationship created by court order, which vests in a custodian the following rights and responsibilities:

(a) To have physical custody and control of the child, and to determine where and with whom the child shall live.

(b) To supply the child with food, clothing, shelter and incidental necessities.

(c) To provide the child with care, education and discipline.

(d) To authorize ordinary medical, dental, psychiatric, psychological, or other remedial care and treatment for the child, including care and treatment in a facility with a program of services for children, and to authorize surgery if the surgery is deemed by two (2) physicians licensed to practice in this state to be necessary for the child.

(e) Where the parents share legal custody, the custodian may be vested with the custody previously held by either or both parents.

(30) "Mental injury" means a substantial impairment in the intellectual or psychological ability of a child to function within a normal range of performance and/or behavior, for short or long terms.

(31) (a) "Neglected" means a child:

~~(a)~~ (i) Who is without proper parental care and control, or subsistence, medical, or other care or control necessary for his well-being because of the conduct or omission of his parents, guardian, or other custodian or their neglect or refusal to provide them; however, no child whose parent or guardian chooses for such child treatment by prayers through spiritual means alone in lieu of medical treatment shall be deemed for that reason alone to be neglected or lack parental care necessary for his health and well-being, but this ~~subsection~~ subparagraph shall not prevent the court from acting pursuant to section 16-1627, Idaho Code; ~~or~~

~~(b)~~ (ii) Whose parent, guardian, or other custodian is unable to discharge the responsibilities to and for the child and, as a result of such inability, the child lacks the parental care necessary for his health, safety, or well-being; ~~or~~

~~(c)~~ (iii) Who has been placed for care or adoption in violation of law; or

~~(d)~~ (iv) Who is without proper education because of the failure to comply with section 33-202, Idaho Code.

(b) For purposes of paragraph (c) of this subsection, "medical neglect" means the failure to seek appropriate health care services for a life-threatening health condition that a reasonable person would recognize as requiring medical attention.

(c) A parent, guardian, or other custodian of a child shall not be held to have committed medical neglect when:

(i) The child has been screened for abuse, abandonment, and neglect, and there is no finding of such abuse, abandonment, or neglect;

(ii) The parent, guardian, or custodian is seeking health care services for the child or presents the child at a health care facility for health care services;

(iii) The parent, guardian, or custodian has made reasonable efforts to obtain health care services for the child; or

(iv) 1. The health condition giving rise to any allegation of neglect is a known and expected complication of the child's diagnosis or treatment; and

2. (A) The recommended care offers limited benefit to the child;

(B) The morbidity or other side effects of a treatment may be considered to be greater than the anticipated benefit;

(C) The parent, guardian, or custodian of the child received conflicting medical recommendations for treatment from multiple practitioners and did not follow all recommendations; or

(D) The parent, guardian, or custodian has sought alternative medical treatment for the child as an alternative to treatment recommended by a physician, as defined by section 54-1803, Idaho Code, or another licensed health care provider who has examined or treated the minor.

(32) "Order to prevent removal," as described in section 16-1611(5), Idaho Code, means an order to allow a child to remain in the child's present surroundings when there is reasonable cause to believe the child is safe in the sole care of one (1) parent, legal guardian, or legal custodian and when there is alleged neglect or abuse by another parent, legal guardian, or legal custodian.

(33) "Permanency hearing" means a hearing to review, approve, reject or modify the permanency plan of the department and to review reasonable efforts in accomplishing the permanency plan.

(34) "Permanency plan" means a plan for a continuous residence and maintenance of nurturing relationships during the child's minority.

(35) "Protective supervision" is a legal status created by court order in a child protective case whereby the child is in the legal custody of his or her parent(s), guardian(s) or other legal custodian(s), subject to supervision by the department.

(36) "Psychotropic medication" means a drug prescribed to affect psychological functioning, perception, behavior or mood. Psychotropic medications include, but are not limited to, antidepressants, mood stabilizers, antipsychotics, antianxiety medications, sedatives and stimulants.

(37) "Qualified individual" means a trained professional or licensed clinician who is not connected to or affiliated with any placement setting in which children are placed by the department and who is not an employee of child and family services, unless a waiver has been approved by the authorized agency.

(38) "Qualified residential treatment program" means a program that has a trauma-informed treatment model designed to address the needs of children with serious emotional or behavioral disorders or disturbances, is able to

1 implement the treatment identified for the child by the assessment of the
 2 child required under section 16-1619A(2), Idaho Code, and is licensed and
 3 accredited in accordance with state and federal law.

4 (39) "Reasonable and prudent parent standard" means the standard of
 5 care characterized by careful and sensible parental decisions that main-
 6 tain the health, safety and best interests of a child while simultaneously
 7 encouraging the emotional and developmental growth of the child that a care-
 8 giver shall use when determining whether to allow a child in foster care
 9 under the responsibility of the state to participate in extracurricular,
 10 enrichment, cultural or social activities.

11 (40) "Relative" means a child's grandparent, great grandparent, aunt,
 12 great aunt, uncle, great uncle, brother-in-law, sister-in-law, first
 13 cousin, sibling and half-sibling.

14 (41) "Residual parental rights and responsibilities" means those
 15 rights and responsibilities remaining with the parents after the transfer of
 16 legal custody including, but not necessarily limited to, the right of visi-
 17 tation, the right to consent to adoption, the right to determine religious
 18 affiliation, the right to family counseling when beneficial, and the respon-
 19 sibility for support.

20 (42) "Shelter care" means places designated by the department for tem-
 21 porary care of children pending court disposition or placement.

22 (43) "Supportive services," as used in this chapter, shall mean ser-
 23 vices that assist parents with a disability to compensate for those aspects
 24 of their disability that affect their ability to care for their child and
 25 that will enable them to discharge their parental responsibilities. The
 26 term includes specialized or adapted training, evaluations or assistance
 27 with effectively using adaptive equipment and accommodations that allow
 28 parents with a disability to benefit from other services including, but not
 29 limited to, Braille texts or sign language interpreters.

30 SECTION 2. That Section 39-5302, Idaho Code, be, and the same is hereby
 31 amended to read as follows:

32 39-5302. DEFINITIONS. (1) For the purposes of this chapter:

33 (a) "Administrator" means the administrator of the Idaho commission on
 34 aging appointed pursuant to section 67-5004, Idaho Code.

35 (b) "Adult" means a person aged eighteen (18) years or older.

36 (c) "Adult protective services" or "APS" means the legal and bureau-
 37 cratic systems and protections safeguarding vulnerable adults through
 38 investigation of APS reports alleging maltreatment and arrangements
 39 for the provision of emergency, supportive, or prevention services nec-
 40 essary to reduce or eliminate risk of harm.

41 (d) "APS report" means an allegation of maltreatment of a vulnerable
 42 adult made to adult protective services.

43 (e) "Caregiver" refers to a formal caregiver or an informal caregiver.

44 (f) "Commission" means the Idaho commission on aging, established pur-
 45 suant to chapter 50, title 67, Idaho Code.

46 (g) "Department" means the Idaho department of health and welfare.

47 (h) "Emergency" means an exigent circumstance in which a vulnerable
 48 adult's health and safety is placed in imminent danger. Imminent danger

1 is when death or severe bodily injury could reasonably be expected to
2 occur without intervention.

3 (i) "Facility" means a health or treatment facility as defined in
4 statute or by the department, including:

5 (i) Certified family homes, as defined in section 39-3502, Idaho
6 Code;

7 (ii) Developmental disabilities facilities, as defined in sec-
8 tion 39-4604, Idaho Code;

9 (iii) Home health agencies, as defined in section 39-1301, Idaho
10 Code;

11 (iv) Hospitals, as defined in section 39-1301, Idaho Code;

12 (v) Intermediate care facilities, as defined in section 39-1301,
13 Idaho Code;

14 (vi) Residential care or assisted living facilities, as defined
15 in section 39-3302, Idaho Code; and

16 (vii) Residential habilitation agencies.

17 (j) "Financial exploitation" means the illegal or improper use, con-
18 trol over, or withholding of the property, income, resources, or trust
19 funds of a vulnerable adult by any person or entity for profit or ad-
20 vantage other than for the vulnerable adult's profit or advantage. The
21 term "financial exploitation" includes but is not limited to:

22 (i) The use of deception, intimidation, or undue influence by a
23 person or an entity in a position of trust and confidence with a
24 vulnerable adult to obtain or use the property, income, resources,
25 or trust funds of the vulnerable adult for the benefit of a person
26 or an entity other than the vulnerable adult;

27 (ii) The breach of a fiduciary duty, including but not limited
28 to the misuse of a power of attorney, trust, or guardianship ap-
29 pointment that results in the unauthorized appropriation, sale,
30 or transfer of the property, income, resources, belongings, or
31 trust funds of the vulnerable adult for the benefit of a person or
32 an entity other than the vulnerable adult; or

33 (iii) Obtaining or using a vulnerable adult's property, income,
34 belongings, resources, or trust funds without lawful authority by
35 a person or an entity who knows or clearly should know that the vul-
36 nerable adult lacks the capacity to consent to the release or use
37 of his property, income, belongings, resources, or trust funds.

38 (k) "Formal caregiver" means a person or an entity that accepts compen-
39 sation to perform a service or services for a vulnerable adult. Compem-
40 sation may be provided by an employer, the vulnerable adult, or someone
41 acting in the interests of the vulnerable adult.

42 (l) "Human trafficking" means the recruitment, harboring, transporta-
43 tion, provision, or obtaining of a person for labor or services through
44 the use of force, fraud, or coercion, for the purpose of subjection to
45 involuntary servitude, peonage, debt bondage, or slavery.

46 (m) "Infirmities of aging" means physical or mental deterioration as-
47 sociated with advanced age or organic brain damage, or other physical,
48 mental, or emotional dysfunction, such that the ability of an older
49 adult to provide adequately for the adult's own care or protection is
50 impaired.

(n) "Informal caregiver" means a person who provides support for a vulnerable adult without expectation of compensation, goods, or services.

(o) "Investigation" means the evaluation of allegations conducted by a provider or the commission through interviews, observations, and examination of information.

(p) "Legal representative" means a guardian, a conservator, an attorney, or an individual with power of attorney who has the legal obligation to act for the benefit of another.

(q) "Licensed medical professional" means an individual practicing in a medical or medical-related field who is licensed, certified, or otherwise credentialed by the state of Idaho.

(r) (i) "Neglect" means failure of a caregiver to provide food, clothing, shelter, or medical care, the absence of which impairs or threatens sustainable life or health of a vulnerable adult.

(ii) For purposes of subparagraph (iii) of this subsection, "medical neglect" means the failure to seek appropriate health care services for a life-threatening health condition that a reasonable person would recognize as requiring medical attention.

(iii) The guardian of a vulnerable adult shall not be held to have committed medical neglect when:

1. The vulnerable adult has been screened for abuse, neglect, and exploitation, and there is no finding of such abuse, neglect, or exploitation;

2. The guardian is seeking health care services for the vulnerable adult or presents the vulnerable adult at a health care facility for health care services;

3. The guardian has made reasonable efforts to obtain health care services for the vulnerable adult; or

4. (A) The health condition giving rise to any allegation of neglect is a known and expected complication of the vulnerable adult's diagnosis or treatment; and

(B) a. The recommended care offers limited benefit to the vulnerable adult;

b. The morbidity or other side effects of a treatment may be considered to be greater than the anticipated benefit;

c. The guardian of the vulnerable adult received conflicting medical recommendations for treatment from multiple practitioners and did not follow all recommendations; or

d. The guardian has sought alternative treatment for the vulnerable adult as an alternative to treatment recommended by a physician, as defined by section 54-1803, Idaho Code, or another licensed health care provider who has examined or treated the vulnerable adult.

(s) "Older adult" means a person aged sixty-five (65) years or older.

(t) "Physical abuse" means the infliction of physical pain, injury, or unjust chemical or physical restraint on a vulnerable adult or death where:

1 (i) The vulnerable adult's condition or death is not justifiably
 2 explained;
 3 (ii) The history given concerning such condition or death is at
 4 variance with the degree or type of the condition or death; or
 5 (iii) Circumstances indicate that such condition or death may not
 6 be the product of an accidental occurrence.
 7 (u) "Prevention services" means interventions designed to reduce the
 8 risk of maltreatment, including but not limited to case management, the
 9 provision of goods or services, or caregiver support.
 10 (v) "Protective action plan" or "PAP" means a person-centered plan
 11 addressing the remedial, social, legal, medical, educational, mental
 12 health, or other services available to reduce or eliminate the risk of
 13 harm to a vulnerable adult.
 14 (w) "Provider" means an area agency on aging or a person or an entity
 15 capable of providing adult protective services, including duly autho-
 16 rized agents and employees.
 17 (x) "Psychological abuse" means the infliction of fear, anguish, agi-
 18 tation, or other emotional distress through verbal or nonverbal acts or
 19 through unjust confinement of a vulnerable adult.
 20 (y) "Self-neglect" means failure of a vulnerable adult to provide for
 21 himself or refusal to accept support needed to obtain food, clothing,
 22 shelter, or medical care reasonably necessary to sustain the life and
 23 health of the vulnerable adult.
 24 (z) "Sexual abuse" means touching, fondling, intercourse, or any other
 25 sexual activity with a vulnerable adult when the vulnerable adult is
 26 unable to understand, unwilling to consent, threatened, or physically
 27 forced.
 28 (aa) "Skilled nursing facility" shall have the same meaning as "nursing
 29 facility" provided in section 39-1301, Idaho Code.
 30 (bb) "Supportive services" means social, legal, health, educational,
 31 mental health, and referral services.
 32 (cc) "Undue influence" means influence exercised over a vulnerable
 33 adult with the intent to:
 34 (i) Inhibit the vulnerable adult's freedom of choice;
 35 (ii) Deprive the vulnerable adult of freedom of choice; or
 36 (iii) Substitute the influencer's choice or desire over that of
 37 the vulnerable adult.
 38 (dd) "Vulnerable adult" means an adult who is unable to protect himself
 39 from maltreatment because of:
 40 (i) A mental, physical, or developmental disability;
 41 (ii) A degenerative brain disease;
 42 (iii) An inability to communicate or implement decisions regard-
 43 ing his person; or
 44 (iv) Other infirmities of aging in an older adult.
 45 (ee) "Vulnerable adult maltreatment" or "maltreatment" means the in-
 46 tentional or negligent infliction of pain or injury on a vulnerable
 47 adult, including financial exploitation, human trafficking, neglect,
 48 physical abuse, psychological abuse, or sexual abuse.
 49 (2) Nothing in this chapter shall be construed to mean a person is
 50 abused, neglected, or exploited for the sole reason he is relying upon treat-

1 ment by spiritual means through prayer alone in accordance with the tenets
2 and practices of a recognized church or religious denomination; nor shall
3 the provisions of this chapter be construed to require any medical care or
4 treatment in contravention of the stated or implied objection of such a per-
5 son.

6 SECTION 3. An emergency existing therefor, which emergency is hereby
7 declared to exist, this act shall be in full force and effect on and after
8 July 1, 2026.